

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.309	0.311	0.028	0.313	0.614
Trial Fee-Shifting	0.214	0.128	0.017	0.142	0.308
Complete Fee-Shifting	0.266	0.035	0.094	0.155	0.304